

HOUSE No. 2702**The Commonwealth of Massachusetts**

PRESENTED BY:

Michael J. Soter

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect correctional officers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/17/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/4/2025</i>
<i>Donald R. Berthiaume, Jr.</i>	<i>5th Worcester</i>	<i>2/4/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/6/2025</i>
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>2/18/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/18/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/18/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>3/10/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>3/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/10/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/26/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>5/30/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/28/2026</i>

HOUSE No. 2702

By Representative Soter of Bellingham, a petition (accompanied by bill, House, No. 2702) of Michael J. Soter and others for legislation to protect correctional officers. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect correctional officers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 38B of Chapter 127 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out subsection b and inserting in place thereof the
3 following subsection:-

4 “(b) Any person in the custody of a correctional facility, including any jail, house of
5 correction, trial court detention facility or state prison, who commits an assault or an assault and
6 battery upon an officer or other employee, any volunteer or employee of a contractor in any such
7 facility or any duly authorized officer or other employee of any such facility engaged in the
8 transportation of a prisoner for any lawful purpose shall be punished by imprisonment for not
9 less than 5 years in a jail or house of correction or for not more than 10 years in a state prison.

10 Such sentence shall begin from and after all sentences currently outstanding and unserved at the
11 time of said assault or assault and battery.”

SECTION 2. Section 1 of Chapter 94C of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the definition of "Narcotic drug" the following definition:

“Synthetic Cannabinoids, A class of synthetic chemical compounds that are designed to mimic the effects of cannabis. Synthetic cannabinoids are often sprayed on plant material and consumed as a smokable substance or can be found in other forms.

SECTION 3. Section 31 of Chapter 94C, as so appearing, is hereby amended by inserting after “(32) 3,4-methylenedioxy-N-ethylcathinone” the following:-

(33) synthetic cannabinoids, including K2 or Spice

SECTION 4. Notwithstanding any general or special law to the contrary, any employee who is injured or becomes ill due to exposure to synthetic cannabinoids (K2) in the course of their employment, including but not limited to correctional officers, first responders, healthcare professionals, and other workers who may come into contact with K2 in the workplace, shall be eligible for medical leave under the Massachusetts Family and Medical Leave Act pursuant to Chapter 175M of the General Laws. Individuals who are exposed to K2 and suffer from any related medical condition shall be eligible for workers' compensation or disability benefits and may apply for Industrial Accident Leave and continue to receive coverage under the Group Insurance Commission health insurance plan during their recovery period. Employees who are affected by K2 exposure and are unable to work shall retain eligibility for health insurance under the GIC without interruption while awaiting final determination of their disability leave status. The individual shall exhaust all short-term disability benefits from other insurance agencies before utilizing medical leave benefits provided pursuant to Chapter 175M of the General Laws.

SECTION 5. The Commissioner of Corrections, in conjunction with the Secretary of Public Safety and Security, shall develop and implement a system to improve the exchange of inmate information between county jails and correctional facilities. This system shall facilitate the sharing of live, real-time data on inmates' histories, classifications, medical records, and criminal backgrounds. The Department of Corrections shall develop and implement protocols for receiving and utilizing this information to expedite the classification and intake process, ensuring that inmates are classified and placed in appropriate correctional facilities more efficiently.

SECTION 6. This act shall take effect on the first day of the month following 180 days after passage.